



MASSACHUSETTS
TRIAL COURT

**AFFIDAVIT UNDER UNIFORM SUMMARY PROCESS
RULE 10(d)(ii) AND MILITARY AFFIDAVIT
(50 U.S.C. §3931)**

HOUSING COURT DIVISION

DOCKET NUMBER

CASE NAME

(Named parties should be listed exactly as they appear on the Complaint filed.)

[In Matter of]

[v.]

1. Under the Servicemembers Civil Relief Act 50 U.S.C. §3931 (the Act), I, _____, have signed below and state under oath or affirmation as follows (check all that apply):

☐ The above-named party(ies) is/are NOT currently in military service as defined in the Act, unless otherwise specified below.

☐ The following party(ies) is/are currently in military service as defined in the Act.

Party(ies) name(s): _____

☐ I am unable to determine whether the party(ies) listed below is/are in military service as defined in the Act. Under 50 U.S.C. §3931(b)(3), I understand that the court, before entering judgment, may require that I file a bond.

Party(ies) name(s): _____

The following facts support this affidavit (required):

- ☐ Defendant(s) has/have never been seen in a military uniform
☐ Defendant(s) works in civilian employment
☐ Acknowledgment by the Defendant(s)
☐ Other: _____

2. The defendant(s) has/have PAID rent (or use and occupancy) in the amount of \$ _____ since the case was filed.

3. The defendant(s) still OWE rent (or use and occupancy) in the amount of \$ _____ through _____. This balance includes only unpaid rent/use and occupancy charges and does not include court costs or other claims, debts, damages, or expenses. (If money is owed, you must complete the worksheet on page 2 or submit other documentation with this affidavit).

4. ☐ The above-named party(ies) continue(s) to occupy the premises described in my Complaint, unless otherwise specified below.

☐ The following party(ies) vacated the premises on _____ (date).

Party(ies) name(s): _____

Subscribed and certified or declared to be true under penalty of perjury:

PRINTED NAME OF PLAINTIFF OR PLAINTIFF'S ATTORNEY

BBO #

X _____
SIGNATURE OF PLAINTIFF OR PLAINTIFF'S ATTORNEY

DATE



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DOCKET NUMBER

MONTH

RENT AMOUNT NOT PAID[illegible]